

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simone Cherry (T2)	Team: Team # 5	CCRB Case #: 200614013	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/13/2006 11:00 PM	Location of Incident: Over the telephone	Precinct: 42	18 Mo. SOL 4/13/2008	EO SOL 4/13/2008	
Date/Time CV Reported Fri, 10/20/2006 12:25 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 10/20/2006 12:25 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Thomas Alps	03128	926498	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Thomas Alps	Discourtesy: Sergeant Thomas Alps spoke obscenely and/or rudely to § 87(2)(b)	

Synopsis

The complainant, § 87(2)(b) called CCRB's Call Processing System on October 20, 2006. According to § 87(2)(b) on October 13, 2006, at approximately 11:00 p.m., she was home at § 87(2)(b) in Manhattan. An unidentified police officer had initially called her residence and left a voice message on her answering machine for her to come to the 28th Precinct stationhouse to pick up her § 87(2)(b) daughter, § 87(2)(b). § 87(2)(b) was arrested § 87(2)(b). § 87(2)(b) arrived at the stationhouse and refused to take custody of § 87(2)(b). Instead, § 87(2)(b) told the officers to press charges against § 87(2)(b) for violating a court truancy order. § 87(2)(b) left the stationhouse and returned home. She received a second telephone call from an unidentified female officer to reappear at the stationhouse because an investigation determined that her daughter was not the perpetrator of the crime. She refused because she had other small children at home to care for. § 87(2)(b) then requested to speak to a supervisor and was transferred to Sergeant Thomas Alps. She told Sergeant Alps she could not return to the stationhouse and Sergeant Alps said, "That's not my damn problem. If you don't come down here and get your damn child, I'm going to bring your ass up on charges. Neglect charges." § 87(2)(b) arrived at the stationhouse and obtained Sergeant Alps name from an unidentified female civilian employee.

On October 27, 2006, the undersigned investigator called § 87(2)(b) and offered her mediation. However, she rejected mediation § 87(2)(b). § 87(2)(g) Instead, § 87(2)(b) told the investigator that filing this complaint was a waste of her time. The investigator then informed § 87(2)(b) of the requirements for the investigation to proceed. This same day, the investigator sent a contact letter to § 87(2)(b). This letter was not returned to CCRB by the United States Postal Service or responded to. On November 3, 2006, November 8, 2006, and November 30, 2006, additional telephone calls were made to § 87(2)(b) but to no avail. Each time a message was left on her answering machine, but she failed to return the investigator's calls. Also on November 30, 2006, a the investigator left a detail message on her answering machine informing her that if she did not call the investigator to schedule an appointment by December 8, 2006 her case will be closed. This same day, the investigator also sent a final contact letter to § 87(2)(b). This letter was not returned to CCRB by the United States Postal Service or responded to. As of December 8, 2006, § 87(2)(b) still has not responded to the investigator's attempts to arrange an interview. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: